

12. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO DEBRA R. BELOTT, ESQ.
FILED BY: CHEVRON U.S.A. INC

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 12 and 13. Defendant Chevron, et. Al ("Chevron") filed a Notice of Hearing and Motion for Debra R. Belott, Esq. and Mikayla Paolini, Esq. to be admitted as Counsel *Pro Hac Vice*. These Motions are unopposed and are **granted**. No appearance is required at the hearings on June 24, 2026.

Background

On December 31, 2025, Defendant filed Notice of Hearing, through Jones Day, on Verified Application for Admission of Debra R. Belott and Mikayla Paolini to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motions were supported by verified applications and declarations. The Court did not receive timely opposition to these Motions.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state. Upon review, the Court finds that proposed pro hac vice counsel's applications comply CRC Rule 9.40.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. Defendant's motion is **granted**. Debra R. Belott, Esq. and Mikayla Paolini, Esq. to be admitted as Counsel *Pro Hac Vice* for the duration of this case.
2. Defendant's Counsel is ordered to prepare and e-file proposed orders conforming to this ruling, attaching a copy of this ruling, no later than five (5) days after the date of this hearing, and to also serve the California State Bar with these orders.
3. No appearance is required on June 24, 2026.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MIKAYLA PAOLINI, ESQ.
FILED BY: CHEVRON U.S.A. INC.

TENTATIVE RULING:

See Line 12.

14. 9:00 AM CASE NUMBER: MSC21-01757
CASE NAME: MARSHA TILLER VS U.S. BANK
HEARING ON SUMMARY MOTION FILED BY DEFENDANT, VALUATION ONE, INC
FILED BY: VALUATION ONE INC A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is Defendant Valuation One, Inc.'s Motion for Summary Judgment or Adjudication ("MSJ"). The MSJ is **denied** as explained below.

Timing of Filing and Service of Motion

On January 20, 2026, the Court issued a Notice of Hearing and Order on Motion for Summary Judgment ("Notice of Hearing") reserving May 20, 2026, as the hearing date for Defendant Valuation One Inc.'s MSJ. (The date was later moved to June 24, 2026 pursuant to an email request by Valuation One.) The Notice of Hearing indicated that Defendant was to file its motion "within 7 calendar days of this order." (all caps removed.)

On January 26, 2026, Defendant filed a Notice of Motion and Motion for Summary Judgment or Adjudication ("Notice"). The Notice indicated that the moving papers in support would be "timely filed at a later date...." No substantive papers were filed at that time.

Thereafter, on April 1, 2026, Valuation One filed an Amended Notice of Motion and Motion for Summary Judgment or Adjudication indicating that the hearing would be held on June 24, 2026. Again, no substantive papers were filed. The Proof of Service filed that same date confirms only the Amended Notice was served.

On Monday, April 6, 2026, Defendant filed its memorandum of points and authorities, separate statement, request for judicial notice, declaration of Timothy Thibodeaux, and appendix of exhibits in support of its MSJ. The proof of service indicates that those documents were served on Saturday, April 4, 2025.

Service Requirements for Summary Judgment Motions

Code of Civil Procedure section 437c(a) provides, in pertinent part: "Notice of the motion **and supporting papers** shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc. § 437c(a)(2) emphasis added.) The summary judgment statute does not specifically address electronic service of notice.

California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that "[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days...." The statute specifically states that this extension does not apply to extend the time for filing: (1) a notice of intent to move for a new trial; (2) notice of intention to move to vacate judgment under Section 663a; or (3) a notice of appeal. (Cal. Code Civ. Proc. § 1010.6 (a)(3)(B). As a summary judgment motion is not excluded from this list, an extra two days needs to be added to the notice period for such

motions. (*Cole v. Superior Court* (2022) 87 Cal.App.5th 84, 87-88.)

Courts have concluded the minimum notice period, plus additional notice depending on the manner of service of the notice of the motion, cannot be waived or reduced by the Court. (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115 [“The subdivision does not contain any language authorizing courts to shorten the 75-day notice period.”].) (See also *Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768 [“[T]he express mandatory language of Code of Civil Procedure section 437c, subdivision (a) makes clear the Legislature intended to deprive trial courts of the power to shorten the notice period for hearing summary judgment motions.”].)

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon*, supra, 106 Cal.App.4th at 117-18.)

The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267.) While cases have found a waiver when a party files a substantive opposition to a motion in the context of other motions, courts have generally found that ***in the context of an MSJ***, waiver of the minimum notice “should only be based on the affirmative assent of the affected parties.” (*Urshan*, supra, 120 Cal.App.4th at 768.) “In sum, the statutory language and existing case law lead [] to the conclusion a trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.” (*Ibid.*)

Additionally, it is improper for a court to merely continue the hearing date any additional days required to meet the minimum notice period. In *Robinson*, the defendants filed and mail served an MSJ on January 26, 2007 with a hearing date of April 12, 2007 – 76 days after the date of mailing. It was also only 18 days before trial – which was a separate issue. (*Robinson* 168 Cal.App.4th at 1260.) Plaintiff opposed arguing in part that the hearing had to be set 80 days after mail service (75-days + 5 for mail service.) At the hearing, the Court ‘faulted defendants for ... failing to serve the mailed motion at least 80 days before the hearing,’ and continued the hearing for 4-days to compensate. (*Ibid.*)

The Court of Appeal, in finding the trial court acted improperly, noted that the 76-day notice was invalid, and the trial court “had no authority to continue the hearing a mere four days” on the hearing date. (*Id.* at 1267.) “At that point, the notice period had to begin anew, and 75 days is mandatory where notice is given personally.” (*Id.* at 1268.) “If the trial court did not want to continue the trial date for the necessary amount of time, it could have taken the motion off calendar. The four-day continuance was a violation of due process and an abuse of discretion.” (*Ibid.*)

Calculations Applicable Here

The hearing for Defendant’s MSJ was noticed for June 24, 2026. Eighty-one days prior to that date is Saturday, April 4, 2026. Adding two additional days for electronic service means that the MSJ was

required to be served on or before April 2, 2026. Valuation One's Proof of Service indicates that the supporting papers were served on April 4, 2026 – two days after the required deadline.

Not only did Plaintiff not consent to a shortened notice period for Valuation One's MSJ, but she also specifically objects to the lack of the minimum statutory notice. (Opp. at III B.)

Conclusion

Valuation One failed to provide the required minimum statutory notice. As the required notice can only be waived if the opposing party specifically consents to lesser notice and Plaintiff does not so consent, the MSJ is **denied**.

15. 9:00 AM CASE NUMBER: MSC21-02685

CASE NAME: GOEDKEN VS. EAST BAY INTEGRATED CARE

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**

FILED BY: GOEDKEN, CHELCIE M

TENTATIVE RULING:

Summary

Plaintiffs Chelcie Goedke and Hope Hilton ("Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is granted as set forth in this tentative ruling. No appearance is required at the hearing on June 26, 2026.

Background

Plaintiffs Chelcie M. Goedken and Hope Hilton seek preliminary approval of a class action and PAGA settlement with Defendant East Bay Integrated Care, Inc., a California hospice care provider ("Defendant"). Goedken worked as an hourly, non-exempt RN Case Manager from August 2020 to March 2021, and Hilton worked as an hourly, non-exempt Spiritual Care Coordinator from October 2020 to July 2021. Goedken filed separate class and PAGA actions on December 28, 2021, and Hilton was added as a named plaintiff in October 2023. The operative complaint alleges violations of the California Labor Code and Business and Professions Code Section 17200, including unpaid overtime, meal and rest period premiums, minimum wages, untimely payment of wages, non-compliant wage statements, failure to maintain payroll records, and unreimbursed business expenses.

The proposed settlement creates a non-reversionary Gross Settlement Amount of \$945,000. The settlement class consists of approximately 600 current and former non-exempt, hourly employees who worked for Defendant in California during the Class Period from December 28, 2017 through September 12, 2025. From the gross amount, the settlement allocates \$315,000 in attorneys' fees, up to \$30,000 in litigation costs, approximately \$11,000 in settlement administration costs, \$20,000 in total Class Representative Enhancement Payments (\$10,000 each to Goedken and Hilton), and a \$40,000 PAGA settlement, leaving a Net Settlement Fund of \$529,000 for distribution to participating class members.

Class Members will receive automatic *pro-rata* payments from the Net Settlement Fund based on the number of weeks worked during the Class Period, without submitting claim forms. This allocation